

further status update in one on July 23, 2026.

On July 23, 2026, Plaintiff submitted an update stating that no resolution has been reached between the Parties and requests the Court to rule on the TRO.

The Parties are ordered to appear to provide the Court an update on the ongoing discussions and to discuss availability for a new TRO hearing date.

The Court again extends an invitation to the DSS and the Lenders, if they see fit, to involve themselves directly in this litigation, by formal intervention if appropriate, or at least by friend-of-the-court input.

9. 9:00 AM CASE NUMBER: C25-02730
CASE NAME: TADEUSZ WYRZYKOWSKI VS. CSW CONSTRUCTION GROUP
***HEARING ON MOTION IN RE: TO RESCIND, BASED ON CRIME, ORDER**
FILED BY:
TENTATIVE RULING:

Before the Court is Plaintiff's Demand to Rescind Crimes Based Order.

Plaintiff's Motion is **denied** as set forth below.

Procedural History

Plaintiff filed his Complaint on September 29, 2025. The operative First Amended Complaint (FAC) was filed on October 20, 2025. On December 1, 2025, Defendant filed a Declaration of Demurring Party in Support of Automatic Extension. On December 8, 2025, Plaintiff filed a Proof of Service of Summons that asserts that the summons, complaint, and FAC were personally served on Defendant on October 18, 2025.

On January 20, 2026, Plaintiff filed a Request for Entry of Default on the Complaint filed on September 29, 2025. The Default was entered on that same date. On January 23, 2026, Defendant filed a motion to set aside the default. On January 26, Plaintiff filed a motion to sustain default, as well as a motion to strike the December 1 declaration by Defendant's counsel.

On April 30, the Court granted Defendant's motion to set aside the default. On May 7, the Court denied Plaintiff's motion to sustain the default and Plaintiff's motion to strike the declaration.

Analysis

Plaintiff's motion consists of a single page with 19 pages of attached documents. The 'motion' references several Penal Code sections but does not explain what they are or how they apply to these civil proceedings. In fact, the whole 'motion' is an incoherent rambling with no discernable focus.

It appears to ask the Court to rescind its June 18, 2026, Order and uphold the earlier default. In other words, it appears to be a motion for reconsideration.

The Court may not entertain a motion for reconsideration absent a showing of new or different facts,

law, or circumstances. (Code of Civil Procedure § 1008(a)-(b); *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1098.) “The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (Code Civ. Proc. § 1008(a).)

Plaintiff fails to submit any declaration, much less one that includes the above information. It also fails to indicate what ‘new or different facts, law, or circumstances’ support a motion for reconsideration.

Plaintiff’s motion is **denied**.

In Opposition, Defendants requests the Court consider whether sanctions are appropriate under California Code of Civil Procedure sections 128.5 and 128.7.

Initially, the Court notes that any request for affirmative relief made in an opposition is improper and will not be considered by the Court. “An application for an order is a motion.” (Code Civ. Proc. § 1003.) Motions must follow the filing and service requirements set forth in the Code. (See e.g. Code Civ. Proc. § 1005, 1010.) To the extent [Party] seeks affirmative relief, it is required to file a motion seeking such relief.

In addition, sanctions under both Code of Civil Procedure sections have strict procedural requirements including a ‘safe harbor’ provision which requires the party seeking sanctions to serve the ‘offending party’ with the motion for sanctions. If Defendants believe that Plaintiff’s actions are sanctionable they need to follow the proper procedures for seeking sanctions.

The Court will not consider a request for sanctions made in an opposition that has not adhered to any of the procedural requirements for such a request.

Conclusion

Plaintiff’s Demand to Rescind Crimes Based Order is **denied**.

10. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO KATRINA M. KREBS FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

11. 9:00 AM CASE NUMBER: C25-02864
CASE NAME: KEVIN SUAREZ VS. PBF ENERGY WESTERN REGION LLC
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MEGAN R. BRILLAULT FOR DEFS
FILED BY: PBF ENERGY WESTERN REGION LLC
TENTATIVE RULING: